IN THE NATIONAL COMPANY LAW TRIBUNAL, AHMEDABAD
COURT - 2

ITEM No241

CP(CAA)/4(AHM)2023
in
CA(CAA)/62(AHM)2023

Proceedings under Section 230-232 of Co. Act, 2013

IN THE MATTER OF:

Nakoda Cotton Industries Pvt Ltd **.....Applicant**
MGN Agro Properties Pvt Ltd

.....Respondent

Order delivered on 13/06/2023

Coram:

Mr. Shammi Khan, Hon'ble Member(J)
Mr. Ajai Das Mehrotra, Hon'ble Member(T)

PRESENT:

For the Applicant : Ms. Dharmishtha Raval, Advocate
For the Respondent :
For the Income Tax Department : Ms. Pankti Shah Advocate for Ms. Maithili Mehta Advocate

ORDER

01. Learned counsel Ms. Dharmishtha Raval appears for the petitioner company. She states that the transferee company undertakes to pay the outstanding Income tax demand as per law.

02. Learned counsel Ms. Pankti Shah appears for the Income Tax Department and states that subject to the statement made by counsel for the petitioner company, she has no objection to approval of the scheme.

03. No objection from the Office of the Regional Director is recorded in the order dated 11.04.2023.

04. None appears for the Official Liquidator however, the petitioner company states that there is no objection from the Official Liquidator and their reply has already come on record.

05. Heard, reserved for orders.

-Sd- -Sd-

AJAI DAS MEHROTRA
MEMBER (TECHNICAL)

SHAMMI KHAN
MEMBER (JUDICIAL)